

A Choong Siew Fong v Bru-Haas Sdn Bhd

INDUSTRIAL COURT (KUALA LUMPUR) — AWARD NO: 216
OF 2024

B AUGUSTINE ANTHONY, C
6 FEBRUARY 2024

C *Labour Law — Employment — Dismissal — Whether claimant was constructively dismissed — Whether company committed fundamental breach of employment contract with claimant — Whether claimant’s dismissal was with just cause or excuse*

D The dispute before the court related to the claim by Choong Siew Fong (‘the claimant’) that she was constructively dismissed from her employment without just cause or excuse by Bru-Haas Sdn Bhd (‘the company’) on the 1 October 2021 pursuant to s 20 (3) of the Industrial Relations Act 1967 (‘the Act’). The company was involved in the business of sales of electrical, electronic and telecommunications products. The claimant commenced employment with the company as an assistant office administrator of the admin division on the 1 June 2019.

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F There was no dispute that the claimant was a confirmed employee of the company. The claimant’s last drawn salary a month was RM 6,000.00 prior to the claimant claiming constructive dismissal. The claimant began her pregnancy around the period of March 2021 during which period the

G COVID-19 pandemic surged and the number of positive cases increased resulting in the company’s employees including the claimant working from home. Around the period of May to June 2021, the employees of the company including the claimant had to work in the office on rotation

H basis which the claimant complied. Due to the claimant’s pregnancy, around the period of July 2021 the claimant’s doctor has advised her to work from home for the remaining period of her pregnancy to minimise the exposure and risk of contracting COVID-19 as the claimant was unable to get her

I vaccination due to her pregnancy. Around that time, there were employees in the company who were exposed to COVID-19 infection. The claimant alleged that despite the company initially agreeing for the claimant to work from home during the duration of her pregnancy, the company

had then changed its mind as it needed someone to work in the office and thereafter requested the claimant to tender her resignation and handover all her list of work. Immediately thereafter the company blocked the claimant’s access to her work email and office internet. The company further pressured the claimant to resign from her employment which the claimant refused. The claimant dissatisfied with the company’s conduct wrote to the company through her solicitors on the 24 September 2021 enquiring the status of her employment as to whether the company had terminated her. The company’s solicitors responded to the claimant’s solicitors on the 28 September 2021 confirming that the claimant remained the employee of the company but the response came with many directives to the claimant which the claimant considered oppressive and in breach of the essential terms of the contract of employment of the claimant. The claimant claimed constructive dismissal in view of the company’s conduct in failing to address the claimant’s concerns. The claimant claimed that she was constructively dismissed by the company from her employment and that the said dismissal was without just cause or excuse and prayed that she be reinstated to her former position in the company without any loss of wages and other benefit. The company denied that the claimant was dismissed and stated that the claimant had in fact abandoned her employment with the company without any notice and prayed that the claimant’s case against the company to be dismissed.

Held, allowing the claimant’s claim:

- (1) As the claimant’s evidence that she was allowed to work from home for the duration of the claimant’s pregnancy was convincing, the evidence of COW2 that the claimant was required to work in the office physically after September 2021 not convincing at all. COW2’s evidence that the claimant must report back to office in September 2021 as the company needs two administrative employees to be present in the office to attend to the company’s daily affairs could only be seen as the company reneging its earlier promise or agreement with the claimant that would allow her to work from home for the duration of her pregnancy (see para 27).
- (2) It was obvious that the company had designed certain

- A** tactics and methods to force the claimant out of her employment with the company and regrettably so against an employee who was grappling with the fear of the risk of COVID-19 infection and how that infection if it ever happened would affect her unborn child.
- B** If the claimant yielded to the company's pressure, the company would have then succeeded in causing the claimant to end her contract of employment with the company without even participating directly by terminating her. It was the type of indirect tactics used by the companies to drive the employees out of employment that gave rise to a claim of constructive dismissal (see para 33).
- C**
- D** (3) It was clear that the company conducted itself in manner that could only be construed as a breach of mutual trust and confidence between the claimant and the company. The company by its conduct or series of conducts had evinced an intention to no longer be bound by the essential terms of the contract of employment between the claimant and the company and clearly the company's conduct was a fundamental breach of the terms employment contract with the claimant which went to the root of the employment contract. The claimant had succeeded in proving that she was dismissed by the company from her employment by way of constructive dismissal (see paras 35–36).
- E**
- F**
- G** (4) Pursuant to s 30(5) of the Act and guided by the principles of equity, good conscience and substantial merits of the case without regard to technicalities and legal forms and after having considered the totality of the facts of the case, the evidence adduced and by reasons of the established principles of industrial relations and disputes, the company had failed to prove on the balance of probabilities that the dismissal of the claimant was with just cause or excuse. The claimant was dismissed without just cause or excuse (see para 38).
- H**
- I** (5) The reinstatement of the claimant to her former position in the company was not a suitable remedy in the circumstances of the case. As such, the appropriate remedy in the circumstances of the case must be compensation in lieu of reinstatement. The

claimant was also entitled for back wages in line with Section 30(6A) of the Act and the factors specified in the Second Schedule (see paras 41–42).

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[Bahasa Malaysia summary

Pertikaian di mahkamah adalah berkaitan dengan tuntutan oleh Choong Siew Fong ('pihak yang menuntut') bahawa dia telah dibuang kerja secara konstruktif tanpa sebab atau alasan yang adil oleh Bru-Haas Sdn Bhd ('syarikat tersebut') pada 1 Oktober 2021 di bawah peruntukan Seksyen 20 (3) Akta Perhubungan Perusahaan 1967 ('Akta tersebut'). Syarikat tersebut terlibat dalam perniagaan menjual produk elektrik, elektronik dan telekomunikasi. Pihak yang menuntut mula bekerja di syarikat tersebut sebagai pembantu tadbir pejabat di bahagian pentadbiran pada 1 Jun 2019. Tiada keraguan bahawa pihak yang menuntut adalah pekerja yang disahkan di syarikat tersebut. Gaji terakhir pihak yang menuntut di syarikat tersebut ialah sebanyak RM6,000.00 sebelum berlakunya pembuangan kerja secara konstruktif yang dikatakan oleh pihak yang menuntut. Pihak yang menuntut mula hamil sekitar bulan Mac 2021 ketika berlakunya wabak pandemik Covid-19 dan bilangan kes positif meningkat menyebabkan kebanyakan pekerja mula bekerja dari rumah termasuklah pihak yang menuntut. Pada bulan Mei hingga Jun 2021, pekerja syarikat tersebut termasuklah pihak yang menuntut perlu bekerja dari rumah secara giliran. Disebabkan pihak yang menuntut sedang hamil, doktor telah menasihati pihak yang menuntut untuk berkerja di rumah dalam baki tempoh kehamilan bagi mengurangkan risiko kepada jangkitan pandemik Covid-19 disebabkan pihak yang menuntut tidak boleh mengambil vaksin atas faktor kehamilan. Pada ketika itu, terdapat sebilangan pekerja syarikat tersebut yang telah dijangkiti Covid-19. Pihak yang menuntut mendakwa bahawa walaupun pada awalnya syarikat tersebut membenarkan pihak yang menuntut untuk bekerja dari rumah, syarikat telah berubah fikiran disebabkan keperluan untuk seseorang pekerja berada di pejabat. Hal ini menyebabkan syarikat mengarahkan pihak yang menuntut untuk berhenti bekerja dan menyerahkan segala tugas. Syarikat telah menyekat pihak yang menuntut daripada mengakses emel dan internet pejabat. Syarikat tersebut dengan lantang mengarahkan supaya pihak yang menuntut berhenti kerja, walaupun ditolak oleh pihak yang menuntut. Pihak yang menuntut tidak berpuas hati dengan tindakan

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- A** syarikat dan telah bertanyakan status pekerjaannya melalui peguam pada 24 September 2024, untuk kepastian sama ada syarikat tersebut telah menamatkan perkhidmatan pihak yang menuntut. Peguam syarikat memaklumkan bahawa pihak yang menuntut masih lagi pekerja syarikat
- B** tetapi maklum balas yang diberikan terhadap pihak yang menuntut dianggap keterlaluan dan telah melanggar terma penting dalam kontrak pekerjaan pihak yang menuntut. Pihak yang menuntut mengatakan bahawa berlakunya pembuangan kerja secara konstruktif disebabkan
- C** kegagalan syarikat memenuhi kehendak pihak yang menuntut. Pihak yang menuntut mengatakan bahawa dia telah dibuang kerja secara konstruktif oleh syarikat dan pembuangan kerja tersebut dibuat tanpa sebab atau alasan yang adil dan menuntut agar ditempatkan semula bekerja di
- D** syarikat tanpa ada kehilangan gaji atau apa-apa faedah. Pihak syarikat menafikan pihak yang menuntut telah dibuang kerja dan mengatakan bahawa pihak yang menuntut sendiri yang menamatkan pekerjaan di syarikat tanpa notis dan memohon agar tuntutan pihak yang
- E** menuntut diketepikan.

Diputusan, membenarkan tuntutan pihak yang menuntut:

- F** (1) Memandangkan keterangan yang menyakinkan oleh pihak yang menuntut bahawa dia telah dibenarkan untuk bekerja dari rumah sepanjang tempoh kehamilan, keterangan COW2 yang mengatakan bahawa pihak yang menuntut diarahkan untuk bekerja di pejabat secara fizikal selepas September 2021 adalah tidak dapat diterima sama sekali. Keterangan COW2 bahawa pihak yang menuntut perlu kembali ke pejabat pada September 2021 memandangkan syarikat memerlukan dua pekerja pentadbiran untuk kendalikan urusan harian boleh
- G** dilihat sebagai tindakan syarikat yang memungkiri janji atau perjanjian dengan pihak yang menuntut yang telah dibenarkan untuk bekerja di rumah sepanjang tempoh kehamilan (lihat perenggan 27).
- H**
- I** (2) Adalah jelas bahawa syarikat tersebut telah menggunakan beberapa taktik dan kaedah untuk memaksa pihak yang menuntut berhenti bekerja dan dilakukan terhadap seorang pekerja yang berisiko untuk menerima jangkitan Covid-19 yang juga boleh

- memberi kesan kepada bayi dalam kandungan. Sekiranya pihak yang menuntut angkur pada tindakan syarikat, syarikat tersebut akan berjaya dalam mengakibatkan pihak yang menuntut berhenti bekerja tanpa perlu syarikat mengambil tindakan menamatkan perkhidmatan pihak yang menuntut. Ia merupakan taktik secara tidak langsung yang digunakan syarikat untuk memaksa pekerja berhenti kerja yang membenarkan tuntutan pembuangan kerja secara konstruktif (lihat perenggan 33).
- (3) Adalah jelas bahawa tindakan syarikat boleh dianggap sebagai pelanggaran rasa saling percaya dan keyakinan di antara syarikat dan pihak yang menuntut. Syarikat tersebut melalui tindakan-tindakan yang diambil telah menunjukkan bahawa syarikat tidak lagi terikat pada terma penting dalam kontrak pekerjaan antara pihak yang menuntut dan syarikat dan tindakan tersebut adalah jelas melanggar terma penting yang menjadi asas dalam kontrak pekerjaan. Pihak yang menuntut berjaya membuktikan bahawa dia telah dibuang kerja oleh syarikat secara konstruktif (lihat perenggan 35–36).
- (4) Berdasarkan Seksyen 30(5) Akta tersebut dan selaras dengan prinsip ekuiti, nurani yang baik dan saksama dan merit kes yang substantif tanpa menghiraukan kepada teknikaliti dan bentuk perundangan dan setelah mengambil kira keseluruhan fakta kes, keterangan yang diberikan dan berpandukan pada prinsip pertikaian perhubungan perusahaan, syarikat telah gagal membuktikan pada keseimbangan kebarangkalian bahawa pembuangan kerja pihak yang menuntut adalah dibuat dengan sebab atau alasan yang adil. Pihak yang menuntut telah dibuang kerja tanpa sebab atau alasan yang adil (lihat perenggan 38).
- (5) Penempatan semula pihak yang menuntut ke dalam syarikat adalah bukan remedi yang bersesuaian mengikut fakta dan keadaan kes. Oleh itu, remedi yang sesuai adalah pampasan sebagai ganti kepada penempatan semula. Pihak yang menuntut juga berhak mendapat gaji duluan mengikut Seksyen
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A 30(6A) Akta tersebut dan berpandukan faktor – faktor yang dinyatakan dalam Jadual Kedua (lihat perenggan 41–42).]

Cases referred to

B *Anwar Abdul Rahim v Bayer (M) Sdn Bhd* [1998] 2 MLJ 599; [1998] 2 CLJ 197, CA (refd)

Dr James Alfred v Koperasi Serbaguna Sanya Bhd & Anor [2001] 3 MLJ 529; [2001] 3 CLJ 541, FC (refd)

C *Goon Kwee Phoy v J & P Coats (M) Bhd* [1981] 2 MLJ 129; [1981] 1 LNS 30, FC (refd)

Govindasamy Munusamy v Industrial Court Malaysia & Anor [2007] 10 CLJ 266, HC (refd)

Ireka Construction Berhad v Chantiravathan a/l Subramaniam James [1995] 2 ILR 11, IC (refd)

D *KA Sanduran Nehru a/l Ratnam v I-Berhad* [2007] 2 MLJ 430; [2007] 1 CLJ 347, CA (refd)

Milan Auto Sdn Bhd v Wong Seh Yen [1995] 3 MLJ 537; [1995] 4 CLJ 449, FC (refd)

E *Quah Swee Khoon v Sime Darby Bhd* [2000] 2 MLJ 600; [2001] 1 CLJ 9, CA (refd)

Telekom Malaysia Kawasan Utara v Krishnan Kutty a/l Sanguni Nair & Anor [2002] 3 MLJ 129; [2002] 3 CLJ 314, CA (refd)

F *Weltex Knitwear Industries Sdn Bhd v Law Kar Toy & Anor* [1998] 7 MLJ 359; [1998] 1 LNS 258, HC (refd)

Wong Chee Hong v Cathay Organization (M) Sdn Bhd [1988] 1 MLJ 92; [1988] 1 CLJ 45; [1988] 1 CLJ Rep 298, SC (refd)

G Legislation referred to

Industrial Relations Act 1967 ss 20, 20(3), 30(5), (6A)

Iris Lim Xin Yi and Chang Carrie (Justin Voon Chooi & Wing) counsel for the claimant.

H *Sarita Ashok Khandar and Vimalan Ramanathan (Edorra Arfah Khandhar) counsel for the company.*

Augustine Anthony C:

I THE REFERENCE:

This is a reference dated 21.07.2022 by the Director General of Department of Industrial Relations, Ministry of Human Resources pursuant to section 20(3) of the Industrial Relations Act 1967 (“The Act”) arising out of the alleged

210	Industrial Law Journal	[2024] 2 ILJ
dismissal of CHOONG SIEW FONG (Claimant) by BRU-HAAS SDN BHD (Company) on the 01.10.2021.		
AWARD		
[1] Pursuant to the directions of this Court, the parties in this matter filed their respective submissions dated 23.10.2023 (Claimant's written submissions), 23.10.2023 (Company's written submissions), 01.12.2023 (Claimant's written submissions in reply) and 04.12.2023 (Company's written submissions in reply)		
[2] This Court considered all the notes of proceedings in this matter, documents and cause papers in handing down this Award namely:		
(i) The Claimant's Statement of Case dated 24.08.2022;		
(ii) The Company's Statement in Reply dated 26.09.2022;		
(iii) The Claimant's Rejoinder dated 04.10.2022;		
(iv) The Claimant's Bundle of Documents – CLB 1, CLB 2 & CLB 3;		
(v) The Company's Bundles of Documents – COB1 & COB 2;		
(vi) The Claimant's Witness Statement – CLW-WS(1) & CLW-WS (2) (Miss Choong Siew Fong);		
(vii) Company's Witness Statement – COW1-WS (Muhaini Binti Mohmad Omar);		
(viii) Company's Witness Statement – COW2-WS(1) & COW2-WS (2) (Mr. Song Dai).		
INTRODUCTION		
[3] The dispute before this Court relates to the claim by Choong Siew Fong ("Claimant") that she was constructively dismissed from her employment without just cause or excuse by Bru-Haas Sdn. Bhd. ("the Company") on the 01.10.2021.		
[4] The Company is involved in the business of sales of electrical, electronic and telecommunications products. The		

- A** Claimant commenced employment with the Company as an Assistant Office Administrator of the Admin Division on the 01.07.2019. There is no dispute that the Claimant was a confirmed employee of the Company. The Claimant's last drawn salary a month was RM 6,000.00 prior to the
- B** Claimant claiming constructive dismissal.

- [5]** The Claimant began her pregnancy around the period of March 2021 during which period the COVID-19 pandemic surged and the number of positive cases increased resulting in the Company's employees including the Claimant working from home. Around the period of May to June 2021, the employees of the Company including the Claimant had to work in the office on rotation basis which the Claimant complied. Due to the Claimant's pregnancy, around the period of July 2021 the Claimant's doctor has advised her to work from home for the remaining period of her pregnancy to minimise the exposure and risk of contracting COVID-19 as the Claimant was unable to get her vaccination due to her pregnancy. Around this time there were employees in the Company who were exposed to COVID-19 infection. The Claimant alleged that despite the Company initially agreeing for the Claimant to work from home during the duration of her pregnancy, the Company had then changed its mind as it needed someone to work in the office and thereafter requested the Claimant to tender her resignation and handover all her list of work. Immediately thereafter the Company blocked the Claimant's access to her work email and office internet. The Company then further pressured the
- C**
- D**
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- F**
- G** Claimant to resign from her employment which the Claimant refused.

- [6]** The Claimant dissatisfied with the Company's conduct wrote to the Company through her solicitors on the 24.09.2021 enquiring the status of her employment as to whether the Company has terminated her. The Company's solicitors responded to the Claimant's solicitors on the 28.09.2021 confirming that the Claimant remained the employee of the Company but the response came with many directives to the Claimant which the Claimant considered oppressive and in breach of the essential terms of the contract of employment of the Claimant. On the 01.10.2021, the Claimant claimed constructive dismissal in view of the Company's conduct in failing to address the
- H**
- I**

Claimant’s concerns. The Claimant now claims that she was constructively dismissed by the Company from her employment and that the said dismissal was without just cause or excuse and prays that she be reinstated to her former position in the Company without any loss of wages and other benefit. The Company denies that the Claimant was dismissed and states that the Claimant had in fact abandoned her employment with the Company without any notice and prays that the Claimant’s case against the Company be dismissed.

[7] The Claimant gave evidence under oath and remained the sole witness for her case. Two witnesses gave evidence on behalf of the Company and they are COW1 (Muhaini Binti Mohmad Omar who is an Assistant Office Administrator of the Company and who gave evidence that the Claimant was needed in the office to carry out her duties so as to assist the other administrative staff in the Company) and COW2 (Mr. Song Dai, the Director of the Company who gave evidence on the Claimant’s scope of duties and the need for the Claimant to be physically present in the Company’s office to discharge her duties).

THE CLAIMANT’S CASE

- [8] The Claimant’s case can be summarised as follows:-
- (i) The Claimant commenced employment with the Company as an Assistant Office Administrator of the Admin Division on the 01.07.2019;
 - (ii) The Claimant was a confirmed employee of the Company and her last drawn salary per month was RM 6,000.00;
 - (iii) The Claimant began her pregnancy around the period of March 2021;
 - (iv) When the Claimant was still in her pregnancy, it was also a period when the COVID-19 pandemic surged and the number of positive cases increased;
 - (v) As a consequence of the increase in the COVID-19 cases and as there was no approval from Ministry of International Trade and Industry (MITI), the Company’s employees including the Claimant were directed to work from home;

- A** (vi) After obtaining permission from MITI, around the period of May to June 2021, the employees of the Company including the Claimant had to work in the office on rotation basis which the Claimant complied;
- B** (vii) At that time between June 2021 and end of July 2021 the Claimant was unable to receive any vaccination due to her pregnancy but despite being unvaccinated, the Claimant had still performed her work in the office physically based on the rotation schedule;
- C** (viii) Due to the Claimant's pregnancy, around the period of July 2021 the Claimant's doctor has advised her to work from home for the remaining period of her pregnancy to minimise the exposure and risk of contracting COVID-19 as the Claimant was unable to get her vaccination due to her pregnancy.
- D**
- E** (ix) The Company agreed to the Claimant working from home based on the advice of the Claimant's doctor as the Claimant's work can be performed from home too;
- (x) Thereafter the doctor has also issued a letter dated 14.09.2021 in written form of her advice to the Claimant to work from home for the remainder of her pregnancy;
- F**
- (xi) The Claimant alleged that despite the Company initially agreeing for the Claimant to work from home during the duration of her pregnancy, the Company had then changed its mind as it needed someone to work in the office;
- G**
- (xii) On the 14.09.2021, one Miss Tina Lai Hui Yin (Miss Tina) who is the Claimant's immediate superior informed the Claimant that the Company requires someone who can work in the office despite the Claimant's doctor's advice to the Claimant;
- H**
- (xiii) Miss Tina then requested the Claimant to tender her resignation and handover all her list of work and for this the Company will compensate her with 3 months' salary;
- I**
- (xiv) Immediately thereafter the Company blocked the Claimant's access to her work email and office internet and all the credentials have been changed

- and or blocked on the instruction of Miss Tina and one Mr Ganesha who is the Director of IT and Technical Department; **A**
- (xv) On the 15.09.2021 Miss Tina further pressured the Claimant to resign from her employment by informing the Claimant that everything was ready for her to sign on the 16.09.2021 wherein the Claimant was to pick up her personal belongings and surrender all Company's properties. **B**
- (xvi) The Claimant was also informed that her payment cheque was also ready for the Claimant to pick up and the Company was awaiting the Claimant's appearance at the Company premises on the 16.09.2021; **C**
- (xvii) A copy of an unsigned letter of termination of employment contract was also sent to the Claimant purportedly being on a "*mutual understanding and agreement*" between the Claimant and the Company which the Claimant vehemently denies ever agreeing to; **D**
- (xviii) The Claimant was also removed from the Company's WhatsApp group chat titled "BRU-HAAS MGT"; **E**
- (xix) When the Claimant queried Miss Tina about the conduct of the Company doing all the above pressuring the Claimant to resign, Miss Tina informed the Claimant that the decision was final and the letter of termination stands as it is; **F**
- (xx) The Claimant dissatisfied with the Company's conduct wrote to the Company through her solicitors on the 24.09.2021 enquiring the status of her employment as to whether the Company has terminated her and how the Company wish to repair the breach of trust and confidence between the Claimant and the Company; **G**
- (xxi) The Company's solicitors responded to the Claimant's solicitors on the 28.09.2021 confirming that the Claimant remained the employee of the Company but the response came with many directives to the Claimant which the Claimant considered oppressive and in breach of the essential or fundamental terms of the contract of employment of the Claimant; **H**
- (xxii) On the 01.10.2021, the Claimant claimed **I**

A constructive dismissal in view of the Company's conduct in failing to address the Claimant's concerns;

(xxiii)The Claimant now claims that she was constructively dismissed by the Company from her employment and that the said dismissal was without just cause or excuse;

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(xxiv)The Claimant now prays that she be reinstated to her former position in the Company without any loss of wages and other benefit.

C THE COMPANY'S CASE

[9] The Company's case can be summarised as follows:-

D (i) The Company does not dispute the Claimant's employment history, her status as a confirmed employee of the Company and her last drawn salary before her claim of constructive dismissal;

E (ii) The Company denies that the Claimant was dismissed from her employment in the Company;

(iii) The Company admits having knowledge of the Claimant's pregnancy in around the period of July 2021;

F (iv) The Company upon being aware of the Claimant's pregnancy and her unvaccinated status had given her a certain amount of latitude purely on goodwill basis for her to work from home until September 2021 but this was not a permanent right;

G (v) However the Company in order to ensure the smooth operation of the Company had requested the Claimant to report back to work physically at the office premises;

H (vi) The Company disagrees that the Claimant's work can be performed without physical attendance in the office as there is a need for 2 office administrative staff to be present in the office to assist one another;

I (vii) The Company states that the Claimant's doctor's letter does not prohibit the Claimant from resuming her job in the office by physical attendance;

(viii) The Company states that due the Claimant's refusal to

- attend work in the office, there was a verbal understanding between the Claimant and her immediate superior that the Claimant's employment will be ceased; **A**
- (ix) The Company admits there was a termination letter prepared by the Company but states that it was done at the Claimant's request but as the letter was not finalised, the termination of the Claimant by mutual understanding did not materialise; **B**
- (x) As the termination of the Claimant could not materialise, the Claimant remained the employee of the Company; **C**
- (xi) On the issue of blocking the Claimant's access to the Company's email and internet, the Company admits doing so but it was done for all employees who were working remotely to prevent any hacking from outside and misuse of data. The blocking exercise was done with the security and integrity of the Company's documentation/information in mind; **D**
- (xii) On the issue of the removal of the Claimant from the WhatsApp Group "BRU-HAAS MGT", the Company states that it was done due to the fact that this Group was only used to facilitate and assist the employees currently working physically at the Company's office; **E**
- (xiii) Despite the Claimant's allegations through her solicitors which the Company denies, the Company had adequately responded to the Claimant's solicitors through the Company's solicitors' letter dated 28.09.2021 and maintained that the Claimant remained an employee of the Company; **F**
- (xiv) Despite the Company's adequate explanations, the Claimant nevertheless claimed constructive dismissal on the 01.10.2021; **G**
- (xv) The Company states that the Company did not do or commit any act resulting in any material breach of any of the fundamental terms of the contract of employment between the Claimant and the Company; **H**
- (xvi) The Company further states that the Company has not evinced any intention not to be bound by any of the essential terms of the contract of employment **I**

A with the Claimant and as such the Claimant’s claim of constructive dismissal is without basis;

(xvii)The Company states that the Claimant by her conduct has abandoned her employment with the Company without any due notice;

B (xviii)The Company states that it did not dismiss the Claimant;

(xix)The Company now prays that the Claimant’s case be dismissed.

C THE LAW

Role and function of the Industrial Court

D [10] The role of the Industrial Court under section 20 of the Industrial Relations Act 1967 is succinctly explained in the case *Milan Auto Sdn Bhd v Wong Seh Yen* [1995] 3 MLJ 537; [1995] 4 CLJ 449. His lordship Justice Mohd Azmi bin Kamaruddin FCJ delivering the judgment of the Federal Court had the occasion to state the following:-

F “As pointed out by this Court recently in *Wong Yuen Hock v Syarikat Hong Leong Assurance Sdn. Bhd. & Another Appeal* [1995] 3 CLJ 344; ; [1995] 2 MLJ 753, the function of the Industrial Court in dismissal cases on a reference under s. 20 is two-fold firstly, to determine whether the misconduct complained of by the employer has been established, and secondly whether the proven misconduct constitutes just cause or excuse for the dismissal. Failure to determine these issues on the merits would be a jurisdictional error...”

H [11] The above principle was further reiterated by the Court of Appeal in the case of *KA Sanduran Nehru a/l Ratnam v I-Berhad* [2007] 2 MLJ 430; [2007] 1 CLJ 347, CA where his lordship Justice Mohd Ghazali Yusoff, JCA outlined the function of the Industrial Court:-

I “[21] The learned judge of the High Court held that the Industrial Court had adopted and applied a wrong standard of proof in holding that the respondent has failed to prove dishonest intention and further stating that the respondent has not been able to discharge their evidential burden in failing to prove every element of the charge. He went on to say that the function of the Industrial Court is best described by the Federal

Court in Wong Yuen Hock v Syarikat Hong Leong Assurance Sdn Bhd and Another Appeal [1995] 3 CLJ 344 where in delivering the judgment of the court Mohd Azmi FCJ said (at p. 352):

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On the authorities, we were of the view that the main and only function of the Industrial Court in dealing with a reference under s. 20 of the Act (unless otherwise lawfully provided by the terms of the reference), is to determine whether the misconduct or irregularities complained of by the management as the grounds of dismissal were in fact committed by the workman, and if so, whether such grounds constitute just cause or excuse for the dismissal"

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[12] It will not be complete this far if this Court fails to make reference to the decision of the Federal Court in the case of *Goon Kwee Phoy v J & P Coats (M) Bhd* [1981] 2 MLJ 129; [1981] 1 LNS 30 where His Lordship Raja Azlan Shah, CJ (Malaya) (as HRH then was) opined:

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*"Where representations are made and are referred to the Industrial Court for enquiry, it is the duty of that Court to determine whether the termination or dismissal is with or without just cause or excuse. **If the employer chooses to give a reason for the action taken by him the duty of the Industrial Court will be to enquire whether that excuse or reason has or has not been made out.** If it finds as a fact that it has not been proved, then the inevitable conclusion must be that the termination or dismissal was without just cause or excuse. The proper enquiry of the Court is the reason advanced by it and that Court or the High Court cannot go into another reason not relied on by the employer or find one for it."*

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Burden Of Proof

[13] Whenever a Company has caused the dismissal of the workman, it is then incumbent on part of the Company to discharge the burden of proof that the dismissal was with just cause or excuse. This Court will now refer to the case of *Ireka Construction Berhad v Chantiravathan a/l Subramaniam James* [1995] 2 ILR 11 in which case it was stated that:-

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"It is a basic principle of industrial jurisprudence that in a dismissal case the employer must produce convincing evidence that the workman committed the offence or offences the workman is alleged to have committed for which he has been

- A** *dismissed. The burden of proof lies on the employer to prove that he has just cause and excuse for taking the decision to impose the disciplinary measure of dismissal upon the employee. The just cause must be, either a misconduct, negligence or **poor performance** based on the facts of the case.*
- B**

Burden of proof in cases of constructive dismissal.

- C** **[14]** The case of *Weltex Knitwear Industries Sdn Bhd v Law Kar Toy & Anor* [1998] 7 MLJ 359; [1998] 1 LNS 258 is relevant on the role of this Court when the dismissal itself is disputed by the Company. In this case his lordship Haji Abdul Kadir Bin Sulaiman J opined:-

- D** *Next is the burden of proof on the issue of forced resignation raised by the first Respondent. The law is clear that if the fact of dismissal is not in dispute, the burden is on the company to satisfy the court that such dismissal was done with just cause or excuse. This is because, by the 1967 Act, all dismissal is prima facie done without just cause or excuse. Therefore, if an employer asserts otherwise the burden is on him to discharge.*
- E** **However, where the fact of dismissal is in dispute, it is for the workman to establish that he was dismissed by his employer. If he fails, there is no onus whatsoever on the employer to establish anything for in such a situation no dismissal has taken place and the question of it being with just cause or excuse would not at all arise: (emphasis is this Court's).**
- F**

- G** **[15]** In view of the above case and anchored on a claim of constructive dismissal where the Company denies dismissing the Claimant from her employment, it is now incumbent upon the Claimant to prove her case that she has been dismissed in line with the claim of constructive dismissal. The burden of proof thus had now shifted to the Claimant to prove that she was dismissed by the Company from her employment before this Court can proceed to determine whether that dismissal if proven amounts to a dismissal without just cause or excuse.
- H**

- I** Standard Of Proof

[16] In the case of *Telekom Malaysia Kawasan Utara v Krishnan Kutty a/l Sanguni Nair & Anor* [2002] 3 MLJ 129;

[2002] 3 CLJ 314 the Court of Appeal had laid down the principle that the standard of proof that is required to prove a case in the Industrial Court is one that is on the balance of probabilities wherein his lordship Justice Abdul Hamid Mohamad, JCA opined:-

"Thus, we can see that the preponderant view is that the Industrial Court, when hearing a claim of unjust dismissal, even where the ground is one of dishonest act, including "theft", is not required to be satisfied beyond reasonable doubt that the employee has "committed the offence", as in a criminal prosecution. On the other hand, we see that the courts and learned authors have used such terms as "solid and sensible grounds", "sufficient to measure up to a preponderance of the evidence," "whether a case... has been made out", "on the balance of probabilities" and "evidence of probative value". In our view the passage quoted from Administrative Law by H.W.R. Wade & C.F. Forsyth offers the clearest statement on the standard of proof required, that is the civil standard based on the balance of probabilities, which is flexible, so that the degree of probability required is proportionate to the nature of gravity of the issue. But, again, if we may add, these are not "passwords" that the failure to use them or if some other words are used, the decision is automatically rendered bad in law."

Law on Constructive Dismissal

[17] In *Wong Chee Hong v Cathay Organization (M) Sdn Bhd* [1988] 1 MLJ 92; [1988] 1 CLJ 45; [1988] 1 CLJ Rep 298 his lordship Salleh Abas LP, delivering the judgment of the Court had this to say:-

"The common law has always recognized the right of an employee to terminate his contract of service and therefore to consider himself as discharged from further obligations if the employer is guilty of such breach as affects the foundation of the contract or if the employer has evinced or shown an intention not to be bound by it any longer. It was an attempt to enlarge the right of the employee of unilateral termination of his contract beyond the perimeter of the common law by an unreasonable conduct of his employer that the expression "constructive dismissal" was used

When the Industrial Court is dealing with a reference under s. 20, the first thing that the Court will have to do is to ask itself a question whether there was a dismissal, and if so, whether it was with or without just cause or excuse."

- A** [18] In a constructive dismissal case it must be shown by the employee that the employer:-
- (i) by his conduct had significantly breached the very essence or root of the contract of employment or,
- B** (ii) that the employer no longer intends to be bound by one or more of the essential terms of the contract,
- C** [19] And if the employer demonstrates the above, then the employee is entitled to treat herself/himself as discharged from further performance of the contract. The termination of the contract is then for reason of the employer's conduct thereby allowing the employee to claim constructive dismissal.
- D**
- E** [20] In the case of *Anwar Abdul Rahim v Bayer (M) Sdn Bhd* [1998] 2 MLJ 599; [1998] 2 CLJ 197, the Court of Appeal expounded the requirements to prove constructive dismissal wherein his lordship Justice Mahadev Shanker JCA delivering the judgment of the Court had the occasion to state the following:-
- F** *"It has been repeatedly held by our courts that the proper approach in deciding whether constructive dismissal has taken place is not to ask oneself whether the employer's conduct was unfair or unreasonable (the unreasonableness test) but whether "the conduct of the employer was such that the employer was guilty of a breach going to the root of the contract or whether he has evinced an intention no longer to be bound by the contract". (See Holiday Inn Kuching v Elizabeth Lee Chai Siok [1992] 1 CLJ 141 (cit) and Wong Chee Hong v Cathay Organization (M) Sdn Bhd [1988] 1 MLJ 92; [1988] 1 CLJ 45; [1988] 1 CLJ Rep 298 at p. 94."*
- G**
- H** [21] It must be further stated here that the Claimant's case being one of constructive dismissal, the Claimant must give sufficient notice to her employer of her complaints that the conduct of the employer was such that the employer was guilty of a breach going to the root of the contract or
- I** whether the employer has evinced an intention no longer to be bound by the contract as stated in the case of **Anwar Abdul Rahim (supra)**. The notice to the employer will be necessary in order for the employer to the remedy the breach (if any) before the Claimant can treat herself as

222	Industrial Law Journal	[2024] 2 ILJ
constructively dismissed if there was failure on part of the Company to remedy the breaches complained of.		A
[22] In the case of <i>Govindasamy Munusamy v Industrial Court Malaysia & Anor</i> [2007] 10 CLJ 266, his lordship Justice Hamid Sultan Abu Backer JC (as he then was) had succinctly stated what a Claimant has to prove in order to succeed in a case of constructive dismissal:-		B
"[5] <i>To succeed in a case of constructive dismissal, it is sufficient for the claimant to establish that:</i>		C
(i) <i>the company has by its conduct breached the contract of employment in respect of one or more of the essential terms of the contract;</i>		D
(ii) <i>the breach is a fundamental one going to the root or foundation of the contract;</i>		E
(iii) <i>the claimant had placed the company on sufficient notice period giving time for the company to remedy the defect;</i>		F
(iv) <i>if the company, despite being given sufficient notice period, does not remedy the defect then the claimant is entitled to terminate the contract by reason of the company's conduct and the conduct is sufficiently serious to entitle the claimant to leave at once; and</i>		G
(v) <i>the claimant, in order to assert his right to treat himself as discharged, left soon after the breach."</i>		H
[23] Having stated the law as above, this Court will now move to the facts and evidence of this case for its consideration. In doing so, this Court will now take into account the conduct of the Claimant, Company and the series of events that led to the Claimant now claiming constructive dismissal.		I
EVALUATION OF EVIDENCE AND THE FINDINGS OF THIS COURT		
[24] In evaluating all the evidence before this Court in order to determine whether the claim of the Claimant that		

A she was constructively dismissed by the Company has any merit, this Court proposes first to deal with the undisputed facts of the case based on the evidence before this Court.

B **[25]** It is undisputed that the Claimant began her pregnancy around the period of March 2021 and subsequently delivered her baby on the 15.12.2021. Before May or June 2021 the Company's employees worked from home as the Company did not have MITI's approval to commence work from its office. However when the
C Company was allowed to operate from office around May and June 2021, the Company directed the employees to work in the office physically on a rotation basis and the Claimant complied with this directive of the Company
D without protest despite being pregnant and unvaccinated. It is also undisputed that during her pregnancy until the period of August 2021, Malaysia was still experiencing the spread of COVID-19 pandemic and during this period the Claimant remained unvaccinated. The Claimant was only fully
E vaccinated between 01.08.2021 and 22.08.2021.

[26] However before the Claimant was vaccinated, on or about 15.07.2021, the Claimant was advised by her doctor who is a consultant obstetrician and gynecologist to
F continue working from home for the remaining period of her pregnancy to minimize the exposure and risk of contracting COVID-19 and the same was immediately communicated by the Claimant to Miss Tina (who was not called as a witness for the Company). Based on the Claimant's evidence and the
G WhatsApp conversation between the Claimant and Miss Tina it is clear that the Company has agreed to allow the Claimant to work from home for the duration of her pregnancy and in the same WhatsApp conversation it was also made clear that the Claimant need not produce any doctor's letter on
H the advice given by the doctor. The Claimant's evidence in this regard was not convincingly challenged by the Company what more when the Company failed to make available Miss Tina to state otherwise or challenge the Claimant's testimony.

I **[27]** This Court has considered the evidence of COW2 that the Claimant was given certain amount of latitude purely on goodwill basis to work from home however finds that COW2's evidence without specifying the extent of this

alleged "latitude" as evidence that is not able to challenge the Claimant's convincing evidence that she was allowed to work from home for the duration of her pregnancy. As the Claimant's evidence that she was allowed to work from home for the duration of the Claimant's pregnancy was convincing, this Court finds that the evidence of COW2 that the Claimant was required to work in the office physically after September 2021 not convincing at all. COW2's evidence that the Claimant must report back to office in September 2021 as the Company needs two administrative employees to be present in the office to attend to the Company's daily affairs can only be seen as the Company reneging its earlier promise or agreement with the Claimant that would allow her to work from home for the duration of her pregnancy.

[28] The Claimant thereafter went for her further check up with her doctor on the 14.09.2021 and enquired that since she has been vaccinated, whether it will be safe for her to return to work normally in the office. It was the Claimant's doctor's advice that the Claimant should remain at home as far as possible. The tone of the doctor's letter was such that it would be dangerous for the Claimant to work in the office during the duration of her pregnancy and this can be seen from the doctor's letter dated 14.09.2021:-

"Ms Choong has been under my care for the duration of her pregnancy and is now at 24 weeks gestation.

In view of the dire situation with COVID numbers in the Klang Valley, I have advised Ms Choong remain at home as far as possible to minimize the likelihood of possible COVID infection since if she were to test positive during pregnancy, it would have serious and far reaching consequences.

As such, I have advised her to work from home for the remainder of her pregnancy in order to limit exposure to others

(emphasis is this Court's)

[29] The above is a consultant obstetrician and gynecologist's advice to a pregnant mother/patient. It is not an advice from a lay person or fear mongering individuals spreading unsubstantiated information or fake dissemination of news on the risk of COVID-19 infection to the pregnant mother and more so the risk it poses to an

- A** unborn child, the extent of the risk was not fully known or understood at that time. It is obvious, the Claimant was unwilling to lose her job as the Claimant was at all times an obedient employee who followed the Company's order to work from office even during her pregnancy but was only
- B** unable or fearful to work from office due to her doctor's advice. The conduct of the Claimant and the emotional upheaval that she was enduring at that time was evident from her evidence in Court what more a mother desperate to ensure the safety and well being of her unborn child.
- C**
- [30]** Considering the mental and emotional well being of the Claimant at that time of pregnancy was at stake, the least the Company could have done was to be considerate and sensitive to the Claimant's well being but that was not the case here. Not only the Company was totally unsympathetic but even worse when the Company could see it fit to renege on its previous assurance to the Claimant that enabled her to work from home for the duration of her pregnancy. So profit driven was the mindset of the Company that it was prepared to disregard the Claimant's welfare at the critical time of the Claimant's pregnancy as the evidence in this Court reveals, which this Court will elaborate below.
- D**
- E**
- F** **[31]** The doctor's advice reduced into writing to the Claimant was on 14.09.2021 and the doctor's advice to the Claimant was conveyed to Miss Tina on the same day. Despite the Claimant informing Miss Tina of the doctor's advice, what followed was that immediately on the same day, the Claimant was asked to tender her resignation letter. The Claimant gave convincing evidence that within 15 minutes after her conversation with Miss Tina, all her access to her work email and other IT resources were blocked on the advice of Miss Tina and one Mr. Ganesha, the Director of
- G** IT and Technical department. By the next day being the 15.09.2021, the Claimant was cut off from all communication with the Company's personnel and this can be seen from the removal of the Claimant from the WhatsApp group "BRU-HAAS MGT" created for
- H** communication purpose by all the Company employees. Around the same time the Company through Miss Tina continued to pressure the Claimant to tender her resignation and had even prepared a letter of Termination of Employment Contract purportedly on the mutual
- I**

understanding and agreement of the Claimant with a cheque for salary of 3 months. The Claimant had denied this alleged mutual understanding and agreement for her to be terminated from her employment in this manner and her evidence remains unchallenged. Miss Tina was never called as a witness to rebut the Claimant's evidence at all and much of COW2's evidence in defence of the Company's conduct remains unconvincing.

[32] Further this Court has considered the evidence of COW2 justifying the blocking of the Claimant from using the email and other Company IT resources and the removal of the Claimant from the WhatsApp group "BRU-HAAS MGT" and find this witness' evidence hardly convicting. The best person who could answer the questions relating to the conduct of the Company in this regard would be Miss Tina who was not called at all by the Company to challenge the Claimant's evidence as Miss Tina was the person on behalf of the Company who had almost all the dealings with the Claimant. The Company's attempts to explain itself through COW2 giving reasons why the Company blocked the Claimant's email and IT resources was so unconvincing that the Company resorted to an unexpected conduct by attempting to introduce one Mr. Ganesha, the Director of IT and Technical department during the testimony of COW2, who was at all times present in this Court and following all the testimonies of witnesses including the Claimant who has completed giving evidence. The Company throughout Mr Ganesha's presence in Court and who was following the proceedings gave everyone present in this Court the impression that he will not be called as a witness but only seated in Court as an observer following the case for the Company but this Court and the Claimant's counsel were taken by surprise when suddenly this witness was called to give evidence on behalf of the Company out of a sudden when there was ample opportunity for this witness to be made available and called as a witness from the beginning of the hearing of this matter. Needless to say that this Court upon the objection by the learned Claimant's counsel, disallowed this one Mr. Ganesha to give any evidence in this Court for this matter. The Company's conduct of a trial by ambush is something that this Court will not tolerate or allow **(for submissions on this objection by the Claimant's counsel please see Notes of Evidence)**. Further, this Court had also considered the evidence of the

- A Company's witness COW1 whose testimony was not at all helpful in challenging the evidence of the Claimant in matters relating to the manner in which the Company has treated the Claimant.
- B [33] To this Court's mind it is obvious that the Company has designed certain tactics and methods to force the Claimant out of her employment with the Company and regrettably so against an employee who was grappling with the fear of the risk of COVID-19 infection and how that
- C infection if it ever happened would affect her unborn child. If the Claimant yielded to the Company's pressure, the Company would have then succeeded in causing the Claimant to end her contract of employment with the Company without even participating directly by terminating
- D her. It is this type of indirect tactics used by the companies to drive the employees out of employment that gives rise to a claim of constructive dismissal.
- E [34] What the Claimant suffered here is nothing short of what was described in the case of *Quah Swee Khoon v Sime Darby Bhd* [2000] 2 MLJ 600; [2001] 1 CLJ 9 by the Court of Appeal wherein his lordship Justice Gopal Sri Ram JCA opined as follows:-
- F "A reading of the pleaded case for the parties resolved the issue that fell for adjudication before the Industrial Court into what the profession has come to call as a "constructive dismissal". There is no magic in the phrase. It simply means this.
- G An employer does not like a workman. He does not want to dismiss him and face the consequences. He wants to ease the workman out of his organisation. He wants to make the process as painless as possible for himself. He usually employs the subtlest of means. He may, under the guise of exercising the management power of transfer, demote the workman. That is what happened in *Wong Chee Hong* (ibid). Alternatively, he may take steps to reduce the workman in rank by giving him fewer or less prestigious responsibilities than previously held.
- H **Generally speaking, he will make life so unbearable for the workman so as to drive the latter out of employment. In the normal case, the workman being unable to tolerate the acts of oppression and victimisation will tender his resignation and leave the employer's services. The question will then arise whether such departure is a voluntary resignation or a dismissal in truth and fact."**
- I (emphasis is this Court's)

[35] Based on the evidence before this Court, it is clear that the Company has conducted itself in manner that can only be construed as a breach of mutual trust and confidence between the Claimant and the Company. The Company by its conduct or series of conducts has evinced an intention to no longer be bound by the essential terms of the contract of employment between the Claimant and the Company and clearly the Company's conduct is a fundamental breach of the terms employment contract with the Claimant which goes to the root of the employment contract. The Claimant's solicitors' letter dated 24.09.2021 giving notice to the Company of its breaches of the essential terms of the contract was however not remedied by the Company nor adequately responded to by the Company despite the Company's solicitors' letter dated 28.09.2021 to the Claimant's solicitors. The obvious followed wherein the Claimant having knowledge that the Company was not prepared to remedy the breaches left soon after on the 01.10.2021 by claiming constructive dismissal on the same date.

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[36] The Company's conduct which amounted to a fundamental breach going to the root of the contract of employment with the Claimant in this case resulted in a successful claim of constructive dismissal and as such the Claimant has succeeded in proving that she was dismissed by the Company from her employment by way of constructive dismissal.

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[37] It is now upon this Court to make a further finding as to whether the dismissal of the Claimant from her employment amounted one without just cause or excuse. This Court finds that the Company's conducts in reneging its earlier assurance that the Claimant can work from home for the duration of her pregnancy and the Company's conduct in forcing the Claimant to work physically in the office despite the Claimant's doctor's advice was calculated to seriously damage the relationship of confidence and trust between the Claimant and the Company. The Company's subsequent conduct of pressuring the Claimant to tender her resignation to the extent of even preparing the termination letter and the pay-cheque without even properly discussing and communicating with the Claimant especially even after knowing that the Claimant was pregnant at that time are

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A exceedingly undesirable conduct of the Company. The Company's conduct also reveals unfair labour practice that should have been wholly avoided. In view of all the findings of this Court herein, the Company's contention be it through the Company's solicitors' letter or through the evidence of its witnesses that the Claimant had abandoned her employment in the Company however must necessarily fail and far from it, the Company's conduct has resulted in the dismissal of the Claimant from her employment in the Company in an unjust and unfair manner.

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[38] Pursuant to Section 30(5) of "The Act" and guided by the principles of equity, good conscience and substantial merits of the case without regard to technicalities and legal forms and after having considered the totality of the facts of the case, the evidence adduced and by reasons of the established principles of industrial relations and disputes as stated above, this Court finds that the Company had failed to prove on the balance of probabilities that the dismissal of the Claimant was with just cause or excuse. This Court now finds that the Claimant has been dismissed without just cause or excuse.

REMEDY

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[39] This Court having ruled that the Claimant was dismissed without just cause or excuse, will now consider the appropriate remedy for the Claimant.

G **[40]** According to the letter of appointment dated 01.04.2019, the Claimant's effective date of employment with the Company commenced on the 01.07.2019. The Claimant was dismissed from her employment with the Company on the 01.10.2021. Thus the Claimant has served the Company for a period of 2 full years of service. There is no dispute that the Claimant was a confirmed employee of the Company.

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[41] The Claimant, in stating that her dismissal from employment with the Company was without just cause or excuse, prays to this Court for reinstatement to her former position in the Company without any loss of wages and other benefits. Considering the factual matrix of this case amongst other where the Claimant claimed constructive

dismissal under a very undesirable condition and thereafter the Claimant has found a new employment in June 2022 with a salary of RM6,000.00 per month which salary is the same amount the Claimant was paid by the Company being her last drawn salary, it is this Court's view that reinstatement of the Claimant to her former position in the Company is not a suitable remedy in the circumstances of this case.

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[42] As such the appropriate remedy in the circumstances of this case must be compensation in lieu of reinstatement. The Claimant is also entitled for back wages in line with Section 30(6A) of "The Act" and the factors specified in the Second Schedule therein which states:-

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"1. In the event that backwages are to be given, such backwages shall not exceed twenty-four months' backwages from the date of dismissal based on the last-drawn salary of the person who has been dismissed without just cause or excuse;"

D

[43] The Claimant's last drawn salary was RM 6,000.00 per month.

E

[44] Equity, good conscience and substantial merits of the case without regard to technicalities and legal forms remains the central feature and focal point of this Court in arriving at its decision and these principles will be adhered to by this Court at all times leading to the final order of this Court.

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[45] This Court is further bound by the principle laid down in the case of *Dr James Alfred v Koperasi Serbaguna Sanya Bhd & Anor* [2001] 3 MLJ 529; [2001] 3 CLJ 541 where his lordship Justice Steve Shim CJ (Sabah & Sarawak) in delivering the judgment of the Federal Court opined:-

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"In our view, it is in line with equity and good conscience that the Industrial Court, in assessing quantum of backwages, should take into account the fact, if established by evidence or admitted, that the workman has been gainfully employed elsewhere after his dismissal. Failure to do so constitutes a jurisdictional error of law. Certiorari will therefore lie to rectify it. Of course, taking into account of such employment after dismissal does not necessarily mean that the Industrial Court has to conduct a mathematical exercise

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- A** **in deduction.** *What is important is that the Industrial Court, in the exercise of its discretion in assessing the quantum of backwages, should take into account all relevant matters including the fact, where it exists, that the workman has been gainfully employed elsewhere after his dismissal. This discretion is in the nature of a decision-making process".*
- B**

(emphasis is this Court's)

- C** **[46]** This Court must take into account the post dismissal earnings of the Claimant in order to make an appropriate deduction from the back wages to be awarded. As stated earlier, the Claimant had given evidence that in June 2022 the Claimant had found new employment with a salary of RM6,000.00 and this post dismissal earnings will be taken
- D** into account by this Court when making the order for the appropriate sum of money to be paid by the Company to the Claimant.

- E** **[47]** Having considered all the facts of case on the appropriate sum to be awarded and after taking into account of the post dismissal earnings or income of the Claimant, this Court hereby orders that the Claimant be paid 1 month salary of the last drawn salary of RM6,000.00 for every year
- F** of service completed totalling 2 years and back wages of the last drawn salary of RM 6,000.00 for 9 months. This will amount to:-

- (i) Backwages ordered:
- G** RM6,000.00 x 9 months = RM 54,000.00
- (ii) Compensation in lieu of Reinstatement:
- RM6,000.00 x 2 months = RM12,000.00

- H** **[48]** Total amount ordered by this Court: RM 66,000.00

FINAL ORDER OF THIS COURT

- I** **[49]** It is this Court's order that the Company pays the Claimant a sum of **Ringgit Malaysia Sixty Six Thousand**

(RM 66,000.00) only less statutory deduction (if any) A
within 30 days from the date of this Award.

The claimant’s claim allowed.

Reported by Mohd Kamarul Anwar B

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